Collective Bargaining Agreement: The Medical and Allied Industry

IT is hereby notified that the Collective Bargaining Agreement set out in the Schedule has been registered in terms of section 79 of the Labour Act [*Chapter 28:01*]—

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE MEDICAL AND ALLIED INDUSTRY

COLLECTIVE BARGAINING AGREEMENT

Made and entered into in accordance with provisions of the Labour Act [*Chapter 28:01*], between the Medical and Allied Employers Association of Zimbabwe (hereinafter referred to as the "employers" or "the employers' organisation"), of the one part, and the Medical Professionals and Allied Workers Union of Zimbabwe and Medical and Allied Trades Workers Union of Zimbabwe (hereinafter jointly referred to as "the employees" or "the trade union"), of the other part, being parties to the National Employment Council for the Medical and Allied Industry. The following was agreed and adopted.

1. Section 10 (Grading, Wages and Allowances) of the Collective Bargaining Agreement for the Medical and Allied Industry published in Statutory Instrument 93 of 2019, is hereby amended by the parties as detailed below.

The industry is divided into three distinct negotiating groups constituted as follows:

GROUP 1. Hospitals, Medical Aid Societies/Health Funders, Pharmaceutical Wholesalers, Distributors and Manufacturers and Laboratories

GROUP 2: Imaging, Retail Pharmacies, Specialists, Ambulances and Optometry

GROUP 3: Primary Care Physicians, Rehabilitation, Clinics, Counsellors, Psychologists and Dentists.

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Interpretation of terms

"clinic" for the purposes of this agreement a clinic refers to a predominantly outpatient facility where patients are treated and may have both outpatient and inpatient facilities provided that: the inpatient facility shall be limited to less than 10 beds only;

"hospital" for the purposes of this agreement a hospital refers to a predominantly inpatient facility where patients are treated and/or admitted provided that the institution has 10 or more beds.

GROUP 1: Hospitals, Medical Aid Societies/Health Funders, Pharmaceutical Wholesalers and Laboratories

The parties have agreed to the following minimum wages effective 1st June, 2023 to 31st December, 2023, as follows:

Grade	Minimum wage (USD) 1st June to 31st December 2023	United States Dollar (USD) Component		Zimbabwe Dollar (ZWL) Component	
		%	Actual	%	Actual
A1	291,58	34,2	100,00	65,8	191,58
A2	311,99	34,2	106,70	65,8	205,29
A3	333,83	34,2	114,16	65,8	219,67
B1	357,20	34,2	122,16	65,8	235,04
B2	382,20	34,2	130,71	65,8	251,49
B3	408,95	34,2	139,86	65,8	269,09
B4	437,58	34,2	149,65	65,8	287,93
B5	468,21	34,2	160,13	65,8	308,08
C1	500,98	34,2	171,34	65,8	329,64
C2	536,05	34,2	183,33	65,8	352,72
C3	573,57	34,2	196,16	65,8	377,41

Whereas wages remain indexed in United States dollars (USD), at least 34.2% of such wages shall be paid in actual United States dollars and the balance paid in Zimbabwe dollars using the Reserve Bank of Zimbabwe auction rate that would have prevailed in the week preceding the week of payments. A 10% premium shall be effected on the auction rate for the purposes of calculating the Zimbabwe dollar component.

Employers who have capacity to pay wholly in United States dollars are encouraged to do so.

GROUP 2: Imaging, Retail Pharmacies, Specialists, Ambulances and Optometry

The parties have agreed to the following minimum wages effective 1st June, 2023 to 31st December, 2023, as follows:

Grade	Minimum wage (USD) 1st June to 31st December 2023	United States Dollar (USD) Component		Zimbabwe Dollar (ZWL) Component	
		%	Actual	%	Actual
A1	300,00	33,3334	100,00	66,666	200,00
A2	321,00	33,3334	107,00	66,666	214,00
A3	343,47	33,3334	114,49	66,666	228,98
B1	367,51	33,3334	122,51	66,666	245,00
B2	393,24	33,3334	131,08	66,666	262,16
B3	420,77	33,3334	140,26	66,666	280,51
B4	450,22	33,3334	150,08	66,666	300,14
B5	481,73	33,3334	160,58	66,666	321,15
C1	515,45	33,3334	171,82	66,666	343,63
C2	551,53	33,3334	183,85	66,666	367,68
C3	590,14	33,3334	196,72	66,666	393,42

Whereas wages remain indexed in United States dollars (USD), at least 33.334% of such wages shall be paid in actual United States dollars and the balance paid in Zimbabwe dollars using the Reserve

Bank of Zimbabwe auction rate that would have prevailed in the week preceding the week of payments. A 10% premium shall be effected on the auction rate for the purposes of calculating the Zimbabwe dollar component.

Employers who have capacity to pay wholly in United States dollars are encouraged to do so.

GROUP 3: Primary Care Physicians, Rehabilitation, Clinics, Counsellors, Psychologists and Dentists.

The parties have agreed to the following minimum wages effective 1st June, 2023 to 31st December, 2023, as follows:

Grade	Minimum wage (USD) 1st June, to 31st December, 2023	Minimum United States Dollar (USD) Component effective 1st June, to 31st December, 2023	Zimbabwe Dollar (ZWL) Component effective 1st June, to 31st December, 2023
A1	287,50	100,00	187,50
A2	307,63	100,00	207,63
A3	329,16	100,00	229,16
B1	352,20	100,00	252,20
B2	376,85	100,00	276,85
B3	403,23	100,00	303,23
B4	431,46	100,00	331,46
B5	461,66	100,00	361,66
C1	493,98	100,00	393,98
C2	528,56	100,00	428,56
C3	565,56	100,00	465,56

Whereas wages remain indexed in United States dollars (USD) at least USD100.00 of such wages shall be paid in United States dollars and the balance paid in Zimbabwe dollars using the Reserve Bank of Zimbabwe auction rate that would have prevailed in the week preceding the week of payments.

Employers who have capacity to pay wholly in United States dollars are encouraged to do so.

2. The above are only minimums and employers who are already paying above stipulated minimums or those who can pay above the stated minimums may do so which position is advisable.

3. All the above agreements are renewable in cases of any unforeseen economic exigencies that may occur during the stated period of the agreements.

4. An employee, who, at the date of commencement of this agreement, is in receipt of a higher wage or more favourable benefits for his or her particular occupation than the wage prescribed in terms of this agreement and benefits thereof, shall not by any reason of this agreement, suffer any reduction in his or her wage or benefits.

5. Institutions with services that fall under one or more industry sectors as categorised above shall for purposes of determining the applicable wage rates be deemed to belong to the sector where their primary business is registered under.

6. Transport Allowance: Where transport is not provided for, the employer shall pay a daily transport allowance of 100% of the actual transport fares required by an employee to and from work on any given route within the town/ city where the business is located.

7. NEC dues: NEC contributions remain at 3% by the employer and 2% by the employee and should be remitted in relation to the currency of payment on a proportional basis.

Declaration

8. The trade union and the employers' organisation having arrived at the agreement set forth above, the undersigned hereby declare that the foregoing is the agreement arrived at and affix their signatures hereto.

Thus, done and signed at Harare on this 23rd day of June, 2023.

Mrs. L. GAGA,
For and on behalf of the Employers Association.

Mr M. SAMBO,
For and on behalf of the Trade Union.

D. CHITEDEGA,
For and on behalf of the Trade Union.

Mr B. CHABUKA,
NEC Secretary General.

Dr B. RIGAVA,
NEC Chairman.